

26VECV02944 26VECV02944

County: los-angeles

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Case Number: 26VECV02944 Hearing Date: September 16, 2026 Dept: B

Tentative Ruling

Gomez v. Horiguchi, Case no. 26VECV02944

Hearing date September 16, 2026

Defendant

Horiguchi's Demurrer to Complaint

Plaintiff

Gomez sues defendant Horiguchi for injuries arising from a motor vehicle accident, alleging defendant negligently failed to yield. Defendant demurs, arguing plaintiff previously filed and dismissed with prejudice an identical complaint on the same underlying facts, LASC case no. 26VECV02773, constituting res judicata. Plaintiff opposes.

"The

function of a demurrer is to test the sufficiency of the complaint as a matter of law." Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts," Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550, but plaintiff must allege essential facts "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. Doheny Park Terrace Homeowners Ass'n., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.

Defendant

requests judicial notice of the following documents filed in LASC case no.

26VECV02773: (1) 5/12/26 complaint; (2) 5/27/26 request for dismissal with prejudice; and (3) 7/1/26 motion to set aside/vacate dismissal. GRANTED pursuant to Evid. Code §452(d).

“Collateral

estoppel applies when (1) the party against whom the plea is raised was a party or was in privity with a party to the prior adjudication, (2) there was a final judgment on the merits in the prior action and (3) the issue necessarily decided in the prior adjudication is identical to the one that is sought to be relitigated.” *Roos v. Red* (2005) 140 Cal.App.4th 870, 879. It is well established that a retraxit, commonly done through a plaintiff’s filing of a dismissal of his or her action with prejudice, is deemed to be a judgment on the merits against that plaintiff. *Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 820.

This

matter was filed on 5/19/26, asserting claims arising from an automobile collision on 7/25/25. See Compl., para. 7. Case no. 26VECV02773 was filed on 5/12/26 by plaintiff against defendant, asserting identical claims arising out of the same accident. See RJN 1. The motion to set aside the dismissal in 26VECV02773 admits the actions are duplicative. RJN 3, 3:7-9. The motion to set aside admits the prior, identical action was dismissed with prejudice. Id. at 3:9-11.

Hon.

Watkins, presiding over 26VECV02773 matter, granted plaintiff’s motion to vacate the dismissal with prejudice and re-entered the dismissal without prejudice 8/21/26. See 8/24/26 Min. Order. A dismissal without prejudice does not constitute res judicata. See *Torrey Pines Bank*, supra.

There is no basis to sustain this demurrer on the basis of res judicata. Per the reply “[t]here is no dispute that the [c]omplaint, taken on its own, states a cause of action for negligence.” Reply, 3:8-9. OVERRULED.

Defendant

demurs to the second cause of action for negligence per se. The opposition admits negligence per se is not a cause of action in California but rather an evidentiary standard. See Evid. Code §669; see also Opp.,

7:27-8:2. Plaintiff requests the court grant leave to amend to incorporate negligence per se allegations into the first cause of action for negligence. Id. at 8:9-12. SUSTAINED with 15 days leave to amend.